



INDIAN POLITY

PRESIDING OFFICERS OF LOK SABHA

MODULE – 63



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PARLIAMENT

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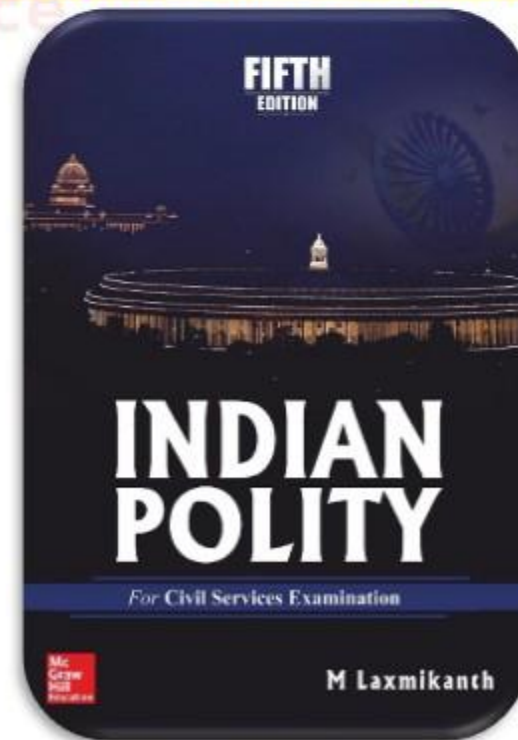
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WHAT DID WE DO IN THE LAST MODULE?

THEMES
Member of Parliament ▪ Qualifications ▪ Disqualifications (IMPORTANT)
Vacancy of seats
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PRESIDING OFFICERS OF PARLIAMENT



— PARLIAMENT OF INDIA —

- 1 Each House of Parliament has its own presiding officer.
- 2 There is a Speaker and a Deputy Speaker for the Lok Sabha and a Chairman and a Deputy Chairman for the Rajya Sabha.
- 3 A panel of chairpersons for the Lok Sabha and a panel of vice-chairpersons for the Rajya Sabha is also appointed.

PARLIAMENT

SPEAKER OF LOK SABHA

ELECTION AND TENURE

- 1 The Speaker is elected by the Lok Sabha from **amongst its members** (as soon as may be, after its first sitting).
- 2 Whenever the office of the Speaker falls vacant, the Lok Sabha elects another member to fill the vacancy.
- 3 The **date of election** of the Speaker is fixed by the President.
- 4 Usually, the Speaker remains in office during the life of the Lok Sabha.

VACATING HIS OFFICE...

- 5 However, he has to vacate his office earlier in any of the following three cases:
 1. if he **ceases to be a member** of the Lok Sabha;
 2. if he **resigns by writing** to the Deputy Speaker; and
 3. if he is **removed by a resolution** passed by a majority of all the members of the Lok Sabha. Such a resolution can be moved only after giving 14 days' advance notice.

PARLIAMENT

SPEAKER OF LOK SABHA

ELECTION AND TENURE



It should be noted here that, whenever the Lok Sabha is dissolved, the Speaker does not vacate his office and continues till the newly-elected Lok Sabha meets.

- 6 When a resolution for the removal of the Speaker is under consideration of the House, he **cannot preside at the sitting of the House**, though he may be present.
- 7 However, he can speak and take part in the proceedings of the House at such a time and vote in the first instance, though not in the case of an equality of votes.

PARLIAMENT

SPEAKER OF LOK SABHA

ROLE, POWERS & FUNCTIONS



In these capacities, he is vested with vast, varied and vital responsibilities and enjoys great honour, high dignity and supreme authority within the House.

- 1 The Speaker is the head of the Lok Sabha, and its representative.
- 2 He is the guardian of powers and privileges of the members, the House as a whole and its committees.
- 3 He is the principal spokesman of the House, and his decision in all Parliamentary matters is final.
- 4 He is thus much more than merely the presiding officer of the Lok Sabha.

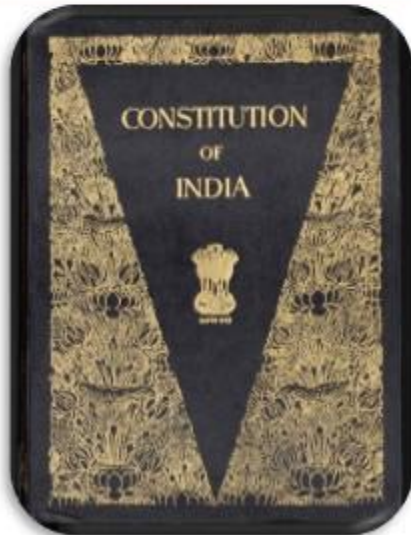
PARLIAMENT

SPEAKER OF LOK SABHA

ROLE, POWERS & FUNCTIONS

5 The Speaker of the Lok Sabha derives his powers and duties from three sources, that is,

the Constitution of India

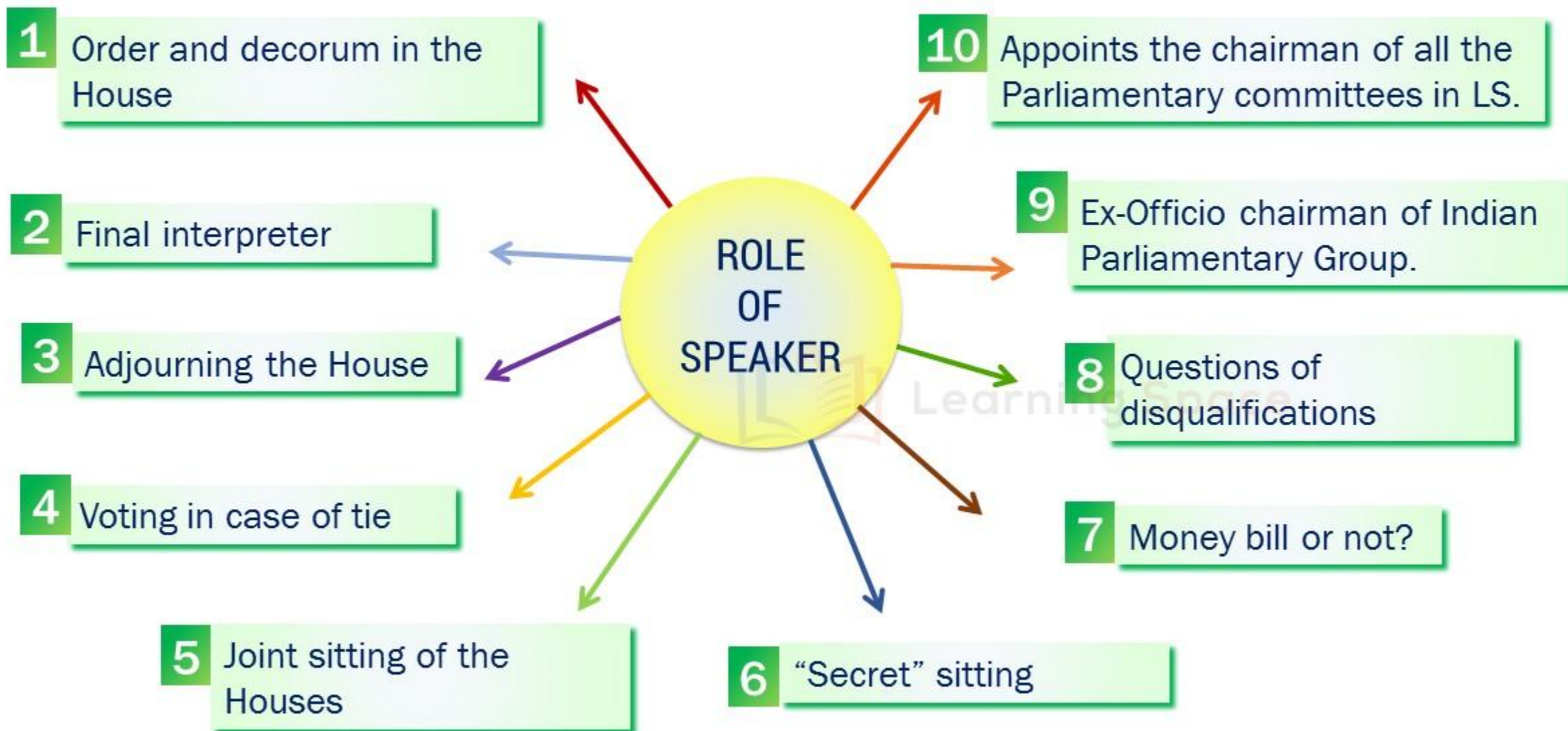


the Rules of Procedure and Conduct of Business of Lok Sabha, and



Parliamentary Conventions



SPEAKER OF LOK SABHA**ROLE, POWERS & FUNCTIONS**

PARLIAMENT

SPEAKER OF LOK SABHA

ROLE, POWERS & FUNCTIONS

Altogether, he has the following powers and duties:

MAINTAINS ORDER AND DECORUM

1

- He maintains order and decorum in the House for conducting its business and regulating its proceedings.
- This is his primary responsibility and he has final power in this regard.

FINAL INTERPRETER

2

- He is the final interpreter of the provisions of
- a) the Constitution of India,
 - b) the Rules of Procedure and Conduct of Business of Lok Sabha, and
 - c) the parliamentary precedents, within the House.

PARLIAMENT

SPEAKER OF LOK SABHA

ROLE, POWERS & FUNCTIONS

ADJOURNING THE HOUSE

- 3** He adjourns the House or suspends the meeting in absence of a quorum. The quorum to constitute a meeting of the House is one-tenth of the total strength of the House.

JOINT SITTING OF HOUSES

- 5** He presides over a joint sitting of the two Houses of Parliament. Such a sitting is summoned by the President to settle a deadlock between the two Houses on a bill.

CASTING VOTE IN DEADLOCK

- 4** He does not vote in the first instance. But he can exercise a casting vote in the case of a tie. In other words, only when the House is divided equally on any question, the Speaker is entitled to vote. Such vote is called casting vote, and its purpose is to resolve a deadlock.

SECRET SITTING

- 6** He can allow a 'secret' sitting of the House at the request of the Leader of the House. When the House sits in secret, no stranger can be present in the chamber, lobby or galleries except with the permission of the Speaker.

PARLIAMENT

SPEAKER OF LOK SABHA

ROLE, POWERS & FUNCTIONS

DECIDING AUTHORITY ON MONEY BILL

- 7
- He decides whether a bill is a money bill or not and his decision on this question is **final**.
 - When a money bill is transmitted to the Rajya Sabha for recommendation and presented to the President for assent, the Speaker endorses on the bill his certificate that it is a money bill.

DISQUALIFICATION UNDER 10th SCHEDULE

- 8
- He decides the questions of disqualification of a member of the Lok Sabha, arising on the ground of **defection under the provisions of the Tenth Schedule**. In 1992, the Supreme Court ruled that the decision of the Speaker in this regard is subject to **judicial review**.

PARLIAMENT

SPEAKER OF LOK SABHA

ROLE, POWERS & FUNCTIONS

CHAIRMAN OF THE INDIAN PARLIAMENTARY GROUP

- 9
- He acts as the **ex-officio chairman of the Indian Parliamentary Group** which acts as a link between the Parliament of India and the various parliaments of the world.
 - He also acts as the ex-officio chairman of the conference of presiding officers of legislative bodies in the country.

CHAIRMAN OF ALL THE PARLIAMENTARY COMMITTEES OF THE LOK SABHA

- 10
- He appoints the chairman of all the parliamentary committees of the Lok Sabha and supervises their functioning.
 - He himself is the chairman of the **Business Advisory Committee, the Rules Committee and the General Purpose Committee.**

PARLIAMENT

SPEAKER OF LOK SABHA

INDEPENDENCE AND IMPARTIALITY

1

Security of tenure

2

Fixed salary

3

Conduct of the speaker cannot be discussed in the LS

6

High position in the order of precedence.

5

Power of casting vote

4

Regulatory powers not subject to jurisdiction of any court.



PARLIAMENT

SPEAKER OF LOK SABHA

INDEPENDENCE AND IMPARTIALITY

The following provisions ensure the independence and impartiality of the office of the Speaker:

- 1
 - He is provided with a security of tenure.
 - He can be **removed only by a resolution passed by the Lok Sabha by an absolute majority** and not by an ordinary majority.
 - This motion of removal can be considered and discussed only when it has the support of at least 50 members.

- 2
 - His salaries are fixed by Parliament.
 - **Charged on the Consolidated Fund of India**

- 3
 - His **work and conduct** cannot be discussed in the Lok Sabha except on a substantive motion.

- 4
 - His powers of conducting business are not subject to the jurisdiction of any Court.

- 5
 - He cannot vote in the first instance. He can only exercise a **casting vote** in the event of a tie. This makes the position of Speaker impartial.

- 6
 - He is given a **very high position** in the order of precedence.
 - He is placed at seventh rank, along with the Chief Justice of India.
 - This means, he has a higher rank than all cabinet ministers, except the Prime Minister or Deputy Prime Minister.

DEPUTY SPEAKER OF LOK SABHA

DID YOU KNOW?

- In Britain, the Speaker is strictly a non-party man.
- There is a convention that the Speaker has to resign from his party and remain **politically neutral**.
- This healthy convention is not fully established in India where the Speaker does not resign from the membership of his party on his election to the exalted office.

- 1 Like the Speaker, the Deputy Speaker is also elected by the Lok Sabha itself from amongst its members.
- 2 He is elected after the election of the Speaker has taken place.
- 3 The date of election of the Deputy Speaker is fixed by the Speaker.
- 4 Whenever the office of the Deputy Speaker falls vacant, the Lok Sabha elects another member to fill the vacancy.

DEPUTY SPEAKER OF LOK SABHA

5 Like the Speaker, the Deputy Speaker remains in office usually during the life of the Lok Sabha.

6 However, he may vacate his office earlier in any of the following three cases:

- 1) if he **ceases to be a member** of the Lok Sabha;
- 2) if he **resigns by writing** to the Speaker
- 3) if he **is removed by a resolution** passed by a majority of all the members of the Lok Sabha. Such a resolution can be moved only after giving 14 days' advance notice.

7 The Deputy Speaker performs the duties of the Speaker's office when it is **vacant**.

8 He also acts as the Speaker when the latter is **absent** from the sitting of the House.

9 In both the cases, he assumes all the powers of the Speaker.

10 He also presides over the joint sitting of both the Houses of Parliament, in case the Speaker is absent from such a sitting.

DEPUTY SPEAKER OF LOK SABHA

11 It should be noted here that the **Deputy Speaker is not subordinate to the Speaker**. He is directly responsible to the House.

12 The Deputy Speaker has one special privilege, that is, whenever he is appointed as a member of a parliamentary committee, he **automatically becomes its chairman**.

13 Like the Speaker, the Deputy Speaker, while presiding over the House, cannot vote in the first instance; he can only exercise a **casting vote** in the case of a tie.

14 Further, when a resolution for the removal of the Deputy Speaker is under consideration of the House, he cannot preside at the sitting of the House, though he may be present.

- 15**
- When the Speaker presides over the House, the Deputy Speaker is **like any other ordinary member of the House**.
 - He can speak in the House, participate in its proceedings and vote on any question before the House.

DEPUTY SPEAKER OF LOK SABHA



- 16** The Deputy Speaker is entitled to a regular salary and allowance fixed by Parliament, and **charged on the Consolidated Fund of India**.

- 17** Upto the **10th Lok Sabha**, both the Speaker and the Deputy Speaker were usually from the ruling party.

- 18** Since the 11th Lok Sabha, there has been a consensus that the Speaker comes from the ruling party (or ruling alliance) and the post of Deputy Speaker goes to the main opposition party.

- 19** The Speaker and the Deputy Speaker, while assuming their offices, do not make and subscribe any separate oath or affirmation.

ORIGIN OF INSTITUTIONS OF SPEAKER & DEPUTY SPEAKER



CHELMSFORD



MONTAGU

- 1 The institutions of Speaker and Deputy Speaker **originated in India in 1921** under the provisions of the Government of India Act of 1919 (Montague-Chelmsford Reforms).
- 2 At that time, the Speaker and the Deputy Speaker were called the President and Deputy President respectively and the same nomenclature continued till 1947.
- 3 Before 1921, the **Governor-General of India** used to preside over the meetings of the Central Legislative Council.

ORIGIN OF INSTITUTIONS OF SPEAKER & DEPUTY SPEAKER

**VITHALBHAI J. PATEL****SACHIDANAND SINHA**

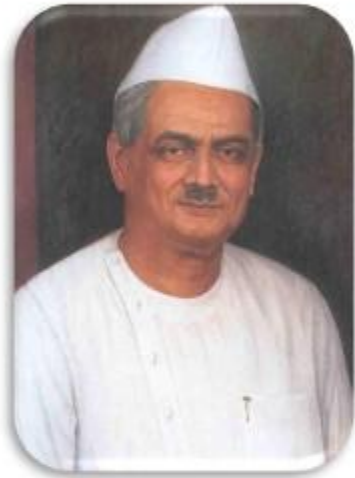
- 4** In 1921, the **Frederick Whyte** and **Sachidanand Sinha** were appointed by the Governor-General of India as the first Speaker and the first Deputy Speaker (respectively) of the central legislative assembly.

- 5** In 1925, **Vithalbhai J. Patel** became the first Indian and the first elected Speaker of the central legislative assembly.

- 6** The **Government of India Act of 1935** changed the nomenclatures of President and Deputy President of the Central Legislative Assembly to the **Speaker and Deputy Speaker respectively**.

- 7** However, the old nomenclature continued till 1947 as the federal part of the 1935 Act was not implemented.

ORIGIN OF INSTITUTIONS OF SPEAKER & DEPUTY SPEAKER



G V MAVALANKAR



**ANANTHASAYANAM
AYYANGAR**

8 G V Mavalankar and Ananthasayanam Ayyangar had the distinction of being the first Speaker and the first Deputy Speaker (respectively) of the Lok Sabha.

9 G V Mavalankar also held the post of Speaker in the Constituent Assembly (Legislative) as well as the provisional Parliament.

10 He held the post of Speaker of Lok Sabha continuously for one decade from 1946 to 1956.

PANEL OF CHAIRPERSONS OF LOK SABHA

1 Under the Rules of Lok Sabha, the Speaker nominates from amongst the members a **panel of not more than ten chairpersons**.

2 Any of them can preside over the House in the absence of Speaker or the Deputy Speaker.

3 He has the same powers as the Speaker when so presiding.

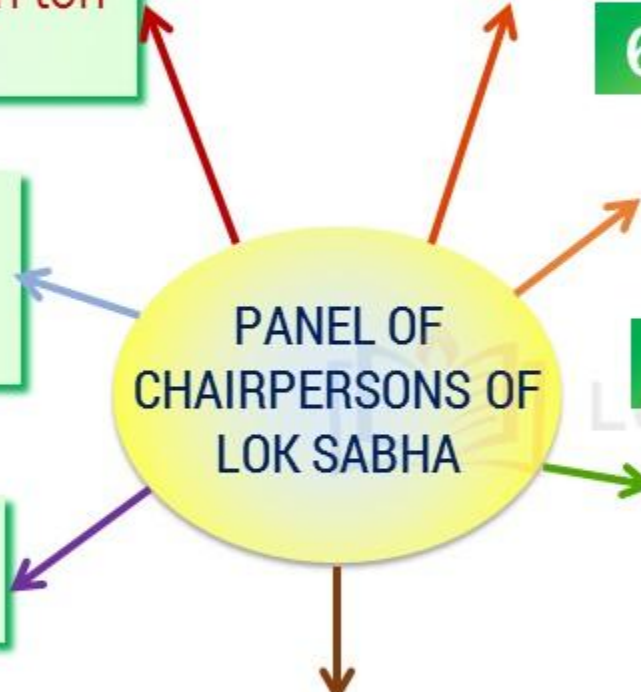
4 When a member of the panel of chairpersons is also not present, any other person as determined by House acts as the Speaker.

7 The elections are held, as soon as possible, to fill the vacant posts.

6 During such time, the Speaker's duties are to be performed by such member of the House as the President may appoint for the purpose.

5 It must be emphasised here that a member of the panel of chairpersons cannot preside over the House, when the office of the Speaker or the Deputy Speaker is vacant.

PANEL OF
CHAIRPERSONS OF
LOK SABHA



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